

1 ENGROSSED HOUSE
2 BILL NO. 4459

By: Newton of the House

3 and

4 Jech of the Senate

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6
7 [waters and water rights - metering of wells -
8 Oklahoma Water Resources Board - allocation of
9 groundwater - existing permit holders - new permit
10 requirements - excessive use of water - waste -
11 voluntary groundwater use measurement program -
12 distribution of board-approved measuring systems -
13 annual certification - effective date]
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18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 82 O.S. 2021, Section 1020.19, is
20 amended to read as follows:

21 Section 1020.19. ~~Upon request of a majority of the landowners~~
22 ~~residing within a~~ A. To encourage groundwater conservation,
23 beginning January 1, 2027, the Oklahoma Water Resources Board shall
24 provide a five-year flex allocation of groundwater usage based off

1 the previously determined allocated annual use of the basin or
2 subbasin, the Board is authorized to require that water wells be
3 metered and that such meters as the Board shall approve be utilized
4 by the applicant and placed under seal, subject to reading by the
5 agents of the Board at any time. The Board may also require that
6 the applicant report the reading of such meters at reasonable
7 intervals. A five-year flex allocation shall not require a new
8 permit for existing permit holders. A five-year flex allocation
9 shall be available for:

10 1. Existing permit holders for groundwater use permits in
11 basins or subbasins, based upon the maximum annual yield
12 determination at the time of the original application;

13 2. New applicants for groundwater use permits in basins or
14 subbasins based upon the current maximum annual yield determination;
15 and

16 3. New and existing applicants and temporary permit holders for
17 groundwater use permits in basins or subbasins where the maximum
18 annual yield has yet to be determined.

19 B. An applicant for a five-year flex allocation shall be
20 required to:

21 1. Submit an annual usage report of the prior year's usage from
22 a Board-approved water measurement system; and

23 2. Pay the annual groundwater permit fee.
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1 C. A five-year flex allocation shall allow the permit holder to
2 exceed the determined annual allocation in any year of the five-year
3 allocation; provided, that the applicant shall adhere to the
4 cumulative annually determined allocation of the basin or subbasin
5 over the five-year period. The permit holder shall not exceed the
6 permitted annual allocation by over one hundred fifty percent (150%)
7 in any of the five (5) years. Usage greater than one hundred fifty
8 percent (150%) in any one year shall be considered waste pursuant to
9 Section 1020.15 of this title.

10 D. 1. For all permit holders not participating in the five-
11 year flex program described above, groundwater irrigation districts
12 created pursuant to Section 1021.1 et seq. of this title or a
13 conservation district participating in a conservation cost-share
14 program pursuant to Section 3-3-101 et seq. of Title 27A of the
15 Oklahoma Statutes shall develop a voluntary groundwater use
16 measurement program that provides board-approved measuring systems
17 to members, on a loan or cost share basis, for use in verifying the
18 volume of water pumped from wells and irrigation systems to ensure
19 system efficiency and proper water use accounting.

20 2. The groundwater irrigation district or conservation district
21 shall issue an annual certification that the permit holder has
22 participated in the program. The certification shall be submitted
23 with the permit holder's annual water use report.

24 E. Nothing in this section shall apply to domestic wells.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate